

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SUHROB KHAMRAEV,

Plaintiff,

-against-

POLICE OFFICERS ALI HAMMUTOGLU (SHIELD
#30112), GIOVANY DIEGUE, JALEESA ARRINGTON
(SHIELD #8342), MEGHAN TAMAO (SHIELD #2815),
JOHN VENTURA, and RAFAEL ZALDIVAR (SHIELD
#9441), THE NEW YORK CITY POLICE DEPARTMENT
and THE CITY OF NEW YORK,

Defendants.
-----X

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
September 15, 2022



MELANIE SELEZNYOV, ESQ.

LEVITSKY LAW FIRM

Attorneys for Plaintiff

SUHROB KHAMRAEV

3163 Coney Island Avenue, 2nd Floor

Brooklyn, NY 11235

(347) 462-1660

Our File No.: DL00855

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
Place of occurrence.

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

PO MEGHAN TAMAO (SHIELD #2815)
100 Church Street
New York, New York 10007

PO JOHN VENTURA
100 Church Street
New York, New York 10007

PO GIOVANY DIEGUE
100 Church Street
New York, New York 10007

PO JALEESA ARRINGTON (SHIELD #8342)
100 Church Street
New York, New York 10007

PO ALI HAMMUTOGLU (SHIELD #30112)
100 Church Street
New York, New York 10007

PO RAFAEL ZALDIVAR (SHIELD #9441)
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
SUHROB KHAMRAEV,

Plaintiff,

Index No.:

Date Purchased:

--against--

VERIFIED COMPLAINT

POLICE OFFICERS ALI HAMMUTOGLU (SHIELD #30112), GIOVANY DIEGUE, JALEESA ARRINGTON (SHIELD #8342), MEGHAN TAMAO (SHIELD #2815), JOHN VENTURA, and RAFAEL ZALDIVAR (SHIELD #9441), THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK,

Defendants.
-----X

Plaintiff, **SUHROB KHAMRAEV**, by his attorneys, **LEVITSKY LAW FIRM**,
complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

1. That the cause of action alleged herein arose in the County of Kings, City and State of New York.
2. That this action falls within one or more of the exceptions set forth in CPLR §1602.
3. That on February 24, 2021, and at all times herein mentioned, Defendant **THE CITY OF NEW YORK ("City")** was, and still is, a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
4. At all relevant times herein, Defendant **NEW YORK CITY POLICE DEPARTMENT ("NYPD")** was a wholly owned subsidiary which was further wholly operated, managed, maintained, and controlled by Defendant **City**.

5. At all relevant times herein, Defendant City, acting through its **NYPD** was responsible for the policy, practice, supervision, implementation, and conduct of all **NYPD** matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all **NYPD** personnel, including correction officers, detectives and supervisory officers as well as the individually named Defendants herein.

6. At all relevant times herein, Defendant City was responsible for enforcing the rules of the **NYPD**, and for ensuring that the **NYPD** personnel obey the laws of the United States and the State of New York.

7. At all relevant times herein, Defendants **POLICE OFFICERS MEGHAN TAMAO (SHIELD #2815), JOHN VENTURA, GIOVANY DIEGUE, JALEESA ARRINGTON (SHIELD #8342), ALI HAMMUTOGLU (SHIELD #30112), and RAFAEL ZALDIVAR (SHIELD #9441)**, were, at all times relevant herein, police officers, detectives, sergeants, lieutenants or other supervisory officers, employed by the **NYPD**, and, as such, were acting in the capacities of agents, servants and employees of the **City of New York**. Defendants were, at all times relevant herein, believed to be assigned to the 62nd Precinct. Defendants **POLICE OFFICERS MEGHAN TAMAO (SHIELD #2815), JOHN VENTURA, GIOVANY DIEGUE, JALEESA ARRINGTON (SHIELD #8342), ALI HAMMUTOGLU (SHIELD #30112), and RAFAEL ZALDIVAR (SHIELD #9441)** are being sued in their official and individual capacities.

8. That prior hereto on June 09, 2022, a sworn Notice of Claim was submitted stating, among other things, the time when and place where the injuries and damages were sustained.

9. That the Plaintiff's demand for adjustment thereof was duly served on the claimant's behalf on the Comptroller of the City of New York and that thereafter said Comptroller for the

City of New York refused or neglected for more than thirty (30) days and up to the commencement of this action to make any reasonable adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

10. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

11. That Plaintiff **SUHROB KHAMRAEV** testified at a 50-H hearing on September 20, 2022.

12. That on or about February 24, 2021, and at all times hereinafter mentioned, Plaintiff **SUHROB KHAMRAEV** was lawfully present inside the premises known as 1491 Shore Parkway, 3rd floor in Kings County, City and State of New York (herein premises).

13. That on or about February 24, 2021, while Plaintiff **SUHROB KHAMRAEV** was lawfully present inside the premises he became a victim of police misconduct.

14. That on or about February 24, 2021, while Plaintiff **SUHROB KHAMRAEV** was lawfully present inside the premises he was falsely accused of crimes he never committed.

15. That on or about February 24, 2021, while Plaintiff **SUHROB KHAMRAEV** was lawfully present inside the premises he was assaulted/battered, falsely arrested and became a victim of malicious and sadistic force.

16. That on or about February 24, 2021, while Plaintiff **SUHROB KHAMRAEV** was lawfully present inside the premises, he was unlawfully searched, was unlawfully handcuffed and forced away from the scene, despite possessing no legal basis to do so, as Defendants did not possess any credible evidence against Plaintiff regarding the commission of any crime or offense.

17. That on or about February 24, 2021, after placing Plaintiff **SUHROB KHAMRAEV** under arrest, the said officers proceeded to engage in impermissible falsification

of documents/reports associated with their crime scene investigation, as well as the Plaintiff's arrest and subsequent seizure.

18. That Defendants violated the Civil Rights of Plaintiff **SUHROB KHAMRAEV**.

19. That Plaintiff **SUHROB KHAMRAEV** was denied due process.

20. That Defendants **POLICE OFFICERS MEGHAN TAMAO (SHIELD #2815), JOHN VENTURA, GIOVANY DIEGUE, JALEESA ARRINGTON (SHIELD #8342), ALI HAMMUTOGLU (SHIELD #30112), and RAFAEL ZALDIVAR (SHIELD #9441)** engaged in a gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

21. That at all times relevant hereto, the Defendants, including **POLICE OFFICERS MEGHAN TAMAO (SHIELD #2815), JOHN VENTURA, GIOVANY DIEGUE, JALEESA ARRINGTON (SHIELD #8342), ALI HAMMUTOGLU (SHIELD #30112), and RAFAEL ZALDIVAR (SHIELD #9441)**, were involved in the decision to stop, seize, search and arrest Plaintiff **SUHROB KHAMRAEV** without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

22. That at all times relevant hereto, the Defendants, including **POLICE OFFICERS MEGHAN TAMAO (SHIELD #2815), JOHN VENTURA, GIOVANY DIEGUE, JALEESA ARRINGTON (SHIELD #8342), ALI HAMMUTOGLU (SHIELD #30112), and RAFAEL ZALDIVAR (SHIELD #9441)**, subjected Plaintiff **SUHROB KHAMRAEV** to excessive force, or failed to intervene when they observed others subjecting Plaintiff **SUHROB KHAMRAEV** to excessive force.

23. That due to the clear absence of any viable probable cause to warrant his criminal prosecution, at any point, Plaintiff **SUHROB KHAMRAEV** was denied his rights to Fair Trial

and Due Process and was maliciously prosecuted from the moment of his arraignment, until the criminal proceeding was irrefutably terminated in favor of Plaintiff **SUHROB KHAMRAEV** when all charges were dismissed and sealed on, or about, 06/24/2021.

24. That the above-mentioned occurrence, and the results thereof were caused by the negligent, careless, reckless and intentional misconduct of Defendant **THE CITY OF NEW YORK**, its agents, servants, employees and those acting under its direction, behest, permission and control in process of providing police services, more specifically **POLICE OFFICERS TAMAO, DIEGUE, ARRINGTON, VENTURA, HAMMUTOGLU, ZALDIVAR**, individually and in their official capacity as New York City Police Officers.

25. That the above mentioned occurrence, and the results thereof were caused by the misconduct of Defendant **THE CITY OF NEW YORK**, its agents, servants and/or employees in the course of their duty(ies) as police officers; in failing to adequately supervise and instruct said arresting officer(s) as to the proper practices and procedures in the discharge of his/her/their duty(ies); in violating Plaintiff **SUHROB KHAMRAEV**'s civil rights; in having negligent hiring practices; in failing to properly screen employees and potential employees; in failing to properly investigate employees and potential employees; and Defendant **THE CITY OF NEW YORK**, its agents, servants, and/or employees were otherwise careless, reckless and negligent. Upon information and belief, Defendant **THE CITY OF NEW YORK** is identified as Defendant **THE NEW YORK CITY POLICE DEPARTMENT** and Defendants **POLICE OFFICERS TAMAO, DIEGUE, ARRINGTON, VENTURA, HAMMUTOGLU, and ZALDIVAR** individually and in their official capacity as New York City Police Officers assigned to the 62nd precinct.

26. That by reason of the foregoing, Plaintiff **SUHROB KHAMRAEV**, sustained civil rights violations, including those under the New York City's Human Rights Law (§ 14 -151 of the Administrative Code of the City of New York, First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments of the U.S. Constitution, as well as, the rights, privileges and immunities secured under the 42 U.S.C. Sec. 1983, the equal protection clause of the U.S. Constitution and the Constitution of the State of New York along with all other applicable state and federal laws, statutes and regulations.

27. That by reason of the foregoing, Plaintiff **SUHROB KHAMRAEV** sustained Malicious Prosecution under New York State Law & 42 USC 1983, as well as unlawful search and seizure under New York State law, 42 U.S.C. 1983 against Individual **NYPD** Defendants, false arrest, false imprisonment under New York law, Assault Battery under New York State law, Excessive Force against Individual **NYPD** Defendants, Violations of Victims of Violent Crime Protection Act Under New York City Law, Biased Based Profiling Under New York City Law, Deprivation of Rights & Denial of Equal Protection of the Law Under New York State Law and Federal Law, Conspiracy to Interfere with Civil Rights & Failure to Prevent Conspiracy Under 42 USC 1983, 1985, 1986 Against Individual Defendants, Failure to Intervene under New York State Law and Federal Law against Individual **NYPD** Defendants, Negligent Hiring, Training, Retention & Supervision Under New York State Law, Malicious Abuse of Process Under New York State Law, Malicious Abuse of Process against Individual **NYPD** Defendants, Municipal "Monell" liability Under 42 USC 1983 Against Defendant City.

28. That by reason of the foregoing, during the time in police custody, Plaintiff **SUHROB KHAMRAEV** was repeatedly caused to feel helpless, disgraced, humiliated, traumatized, intimidated, harassed, shamed, and ridiculed. Additionally, Plaintiff **SUHROB**

KHAMRAEV was caused to suffer court costs, attorney costs and attorney's fees. Claim is for personal injuries, hospital, physician and other medical expenses, pain and suffering, loss of quality and/or enjoyment of life, and all other damages to which Plaintiff **SUHROB KHAMRAEV** is entitled by case law and statute.

29. That by reason of the foregoing, Plaintiff **SUHROB KHAMRAEV** was caused to sustain serious injuries and to have suffered pain, shock, mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Plaintiff was, and will continue to be, rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

FIRST CAUSE OF ACTION

Unlawful Search & Seizure Under New York State Law

30. The above paragraphs are here incorporated by reference as though fully set forth herein.

31. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

32. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

33. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

34. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

35. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.

36. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of Respondeat superior. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search & Seizure Under

42 U.S.C. § 1983 Against Individual NYPD Defendants

37. The above paragraphs are here incorporated by reference as though fully set forth herein.

38. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

39. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

40. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

41. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

42. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

43. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest & False Imprisonment Under New York State Law

44. The above paragraphs are here incorporated by reference as though fully set forth herein.

45. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

46. Plaintiff was conscious of his confinement.

47. Plaintiff did not consent to his confinement.

48. Plaintiff's arrest and false imprisonment was not otherwise privileged.

49. Defendant City of New York, as employer of individual Defendants, is responsible for their wrongdoings under the doctrine of Respondeat Superior.

50. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION**False Arrest & False Imprisonment Under 42 U.S.C. § 1983 Against Individual****NYPD Defendants**

51. The above paragraphs are here incorporated by reference as though fully set forth herein.

52. At all relevant times, Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

53. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

54. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

55. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION**Assault & Battery Under New York State Law**

56. The above paragraphs are hereby incorporated by reference as though fully set forth.

57. Defendants caused Plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

58. Defendants, including **POLICE OFFICERS TAMAO, DIEGUE, ARRINGTON, VENTURA, HAMMUTOGLU, and ZALDIVAR** engaged in and subjected

Plaintiff to immediate harmful or offensive touching and battered him without his consent or other legal justification therefor.

59. Defendant City, as employer of the individual Defendants is responsible for their wrongdoing under the doctrine of Respondeat Superior.

60. That as a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress Under New York State Law

61. The conduct of Defendants was extreme and outrageous.

62. Defendants' extreme and outrageous conduct was perpetrated with the intent to cause, or with disregard to a substantial probability of causing, severe emotional distress to Plaintiff.

63. Defendants' extreme and outrageous conduct is causally related to Plaintiff's injuries.

64. Defendants' extreme and outrageous conduct caused Plaintiff to sustain extreme emotional distress.

65. As a direct and proximate result off this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Excessive Force Under 42 U.S.C. § 1983 Against Individual NYPD Defendants

66. The above paragraphs are here incorporated by reference as though fully set forth herein.

67. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

68. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

69. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under New York State Law

70. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

71. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

72. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of Respondeat Superior.

73. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETH CAUSE OF ACTION

Failure to Intervene Under 42 U.S.C. § 1983 Against Individual NYPD Defendants

74. The above paragraphs are here incorporated by reference as though fully set forth herein.

75. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

76. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

77. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under New York State Law

78. The above paragraphs are hereby incorporated by reference as though fully set forth.

79. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

80. Defendant City breached those duties of care.

81. Defendant City placed the individually named Defendants herein in a position where they could inflict foreseeable harm.

82. Defendant City knew or should have known of the individual named Defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiff.

83. Defendant City failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiff.

84. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Prosecution Under New York State Law

85. The above paragraphs are here incorporated by reference as though fully set forth herein.

86. Defendants initiated the prosecution against Plaintiff.

87. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

88. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

89. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

90. Due to the intentional, willful, and unlawful acts of Defendants, Plaintiff suffered significant damages.

91. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of Respondeat Superior.

92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION**Malicious Prosecution Under 42 U.S.C. § 1983 Against Individual NYPD****Defendants**

93. The above paragraphs are here incorporated by reference as though fully set forth herein.

94. Defendants initiated the prosecution against Plaintiff.

95. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

96. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

97. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

98. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

99. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION**Malicious Abuse of Process Under New York State Law**

100. The above paragraphs are hereby incorporated by reference as though fully set forth.

101. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiff to compel the compliance or forbearance of some act.

102. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecutions against Plaintiff, especially in the absence of any cognizable probable cause.

103. Defendants intended to inflict substantial harm upon Plaintiff.

104. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecutions initiated and thereafter maintained against Plaintiff.

105. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of Respondeat Superior.

106. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under 42 U.S.C. § 1983 Against Individual NYPD

Defendants

107. The above paragraphs are hereby incorporated by reference as though fully set forth.

108. Defendants arrested, detained and caused criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

109. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecution against Plaintiff, especially in the absence of any cognizable probable cause.

110. Defendants intended to inflict substantial harm upon Plaintiff.

111. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecution initiated and thereafter maintained against Plaintiff.

112. Defendants' actions therefore resulted in deprivations to Plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Municipal " Monell" Liability Under 42 U.S.C. § 1983 Against Defendant City

114. The above paragraphs are here incorporated by reference as though fully set forth.

115. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

116. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

117. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

118. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

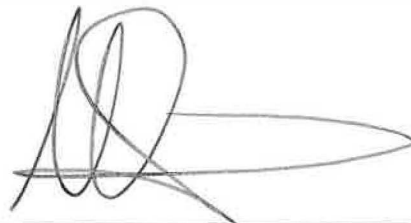
119. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

120. Defendant City's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff demands judgment against the Defendant herein, in a sum that exceeds the jurisdiction of all other courts lower than the Supreme Court of the State of New York together with the costs and disbursements and interests of this action.

Dated: Brooklyn, New York
September 15, 2022



MELANIE SELEZNYOV, ESQ.

LEVITSKY LAW FIRM

Attorneys for Plaintiff

SUHROB KHAMRAEV

3163 Coney Island Avenue, 2nd Floor

Brooklyn, NY 11235

(347) 462-1660

Our File No.: DL00855

VERIFICATION

STATE OF NEW YORK

SS:

COUNTY OF KINGS

Sukrob Khamraev, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

Summons & Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: Brooklyn, New York
September 20, 2022

X [Signature]

Sworn to before me this
20th day of September, 2022

[Signature]
Notary Public

YURIY YAROSLAVSKIY
Notary Public, State of New York
No. 02YA6324118
Qualified in Queens County
Commission Expires May 4, 2019

01/8/23

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

SUHROB KHAMRAEV,

Plaintiff,

--against--

POLICE OFFICERS ALI HAMMUTOGLU (SHIELD #30112), GIOVANY DIEGUE,
JALEESA ARRINGTON (SHIELD #8342), MEGHAN TAMAO (SHIELD #2815),
JOHN VENTURA, and RAFAEL ZALDIVAR (SHIELD #9441), THE NEW YORK CITY
POLICE DEPARTMENT and THE CITY OF NEW YORK,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

LEVITSKY LAW FIRM
Attorneys for Plaintiff
3163 Coney Island Avenue 2nd Floor
Brooklyn, NY 11235
(347) 462-1660

The undersigned attorney hereby certifies, pursuant to 22 NYCRR 130-1.1-a that he/she has read the within papers and that same are not frivolous as that term is defined in 22 NYCRR 130-1.1(c).



MELANIE SELEZNYOV, Esq.